

Court No. - 3

Case :- WRIT - C No. - 10794 of 2022

Petitioner :- Ganesh Vishwakarma

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Vinod Kumar, Kapil Kumar Soni

Counsel for Respondent :- C.S.C., Arti Raje

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

1. Heard learned counsel for the petitioner, learned Standing Counsel for the State-respondents and Ms. Arti Raje, learned counsel for the respondent nos.3, 4 and 5.

2. This writ petition has been filed praying for the following reliefs :

"i. Issue a writ order or direction in nature of Certiorari for quashing the impugned demand notice dated 20.06.2018 issued by the Executive Engineer Electricity Distribution section Mauranipur, Jhansi and consequent recovery proceeding against the petitioner for recovering the sum of Rs. 2,49,674/- as alleged Electricity theft dues. (Annexure No. 4 to the W.P.).

ii. Issue a writ order or direction in nature of Mandamus directing the respondents not to be compelled to the petitioner for recovering a sum of Rs. 2,49,674/- as alleged Electricity theft dues, in compliance of the order dated 13.07.2019 passed by the Special Judge (Electricity Act) Jhansi in Special Trial No. 97/2019 (State Vs. Mukesh Gupta & Another) in the interest of justice."

3. Learned counsel for the respondent nos.3, 4 and 5/Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

4. In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, this writ petition is **disposed of** giving liberty to the petitioner to submit his objection under Para 6.8 of U.P. Electricity Supply Code, 2005 before the respondent no.4 within four weeks from today alongwith a certified copy of this order. In the event, such an objection is submitted within the stipulated period, it shall be decided by the respondent no.4 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

5. For a period of eight weeks or till the disposal of the

objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand/notice.

Order Date :- 26.5.2022

A. V. Singh